

EXCLUSIVE AUTHORIZATION AND RIGHT TO SELL OR LEASE

This agreement ("**Agreement**") is designed to allow a seller or landlord to engage a qualified, licensed professional for the purpose of obtaining listing and marketing services, and receiving contract negotiation and advocacy services, throughout the entire real estate listing and sale or leasing process for the real property described below ("**Property**"). The undersigned seller or landlord ("**Seller/Landlord**") grants the undersigned brokerage firm ("**Listing Broker**") the exclusive right to lease or sell the Property for the Term.

1. **PROPERTY.** The Property to be sold or leased under this Agreement is as follows:

Street Address: _____

City, County, State, Zip Code: _____

Identification (for ex: Legal Description, Tax ID # or Parcel # or Lot, Block): _____

2. **LENGTH AND TYPE OF AGREEMENT.** This Agreement shall begin on _____, and will automatically end on _____ (at 11:59 p.m., in the Property's time-zone) or upon the closing or termination of any then-pending transaction involving the Property, whichever is later ("**Term**"). The Property will be listed (*check all that apply*): ☐ For Sale; and/or ☐ For Lease

3. **AGENCY DISCLOSURE.** The agency relationship between Seller/Landlord and Listing Broker determines how Listing Broker will work on Seller's/Landlord's behalf. Listing Broker's agency relationship with Seller/Landlord is disclosed and documented in a separate disclosure/form.

4. **LISTING PRICE/LEASE RATE.** The listing price/lease rate ("**Listing Price/Lease Rate**") shall be \$ _____. Any adjustment to the Listing Price/Lease Rate shall be agreed upon in writing between Seller/Landlord and Listing Broker.

Notice: The amount or rate of real estate commissions is not fixed by law. They are set by each broker individually and may be negotiable between Seller/Landlord and Listing Broker.

5. **LISTING BROKER COMPENSATION.** Listing Broker will earn compensation ("**Listing Broker Compensation**") when a sale or lease of the Property has been completed, regardless of who has found the buyer or tenant ("**Buyer/Tenant**"). Listing Broker Compensation shall be paid by Seller/Landlord, in U.S. funds, at the time of, and as a condition of, sale completion, or upon mutual execution and delivery of a lease agreement (or as otherwise negotiated between the parties per the attached addendum). This Agreement shall serve as escrow instructions. Listing Broker Compensation is (*check all that apply*):

<u>For Sale:</u>	<u>For Lease:</u>
☐ Exactly \$ _____; or	☐ Exactly \$ _____; or
☒ <u>3</u> % of the gross purchase price of the Property, as reflected on the final settlement statement; or	☐ _____ % of the gross rental amount over the initial term, as reflected in the signed lease agreement; or
☐ Other: _____	☐ Other: _____

Unrepresented Buyer/Tenant. If Buyer/Tenant is not represented by a broker ("**Buyer's/Tenant's Broker**"), then Listing Broker (eXp) assumes additional liability. In this scenario, Listing Broker (eXp) will not represent Buyer/Tenant, but will ensure fair treatment of all parties. In this situation, the Listing Broker Compensation shall be: (i) for a sale, exactly \$ _____; or 6 % of the gross purchase price of the Property, as reflected on the final settlement statement, and/or (ii) for a lease, exactly \$ _____; or _____ % of the gross rental amount over the initial term, as reflected in the signed lease agreement.

Buyer/Tenant Prospect List. If, within fifteen (15) days after expiration or early cancellation of this Agreement, Listing Broker submits to Seller/Landlord a written list of prospective Buyers/Tenants who viewed the Property during the Term, and any prospective Buyers/Tenants on that written list go under contract to purchase or lease the Property within _____ (90) days after the Term, then Listing Broker will earn and receive Listing Broker Compensation from Seller/Landlord in accordance with this Section. Further, if negotiations with any prospective Buyers/Tenants on that written list are ongoing at the end of this period, Seller/Landlord agrees that this period will be extended for so long as negotiations are continuing.

Exclusive Authorization. Seller/Landlord understands that having multiple exclusive real estate listing agreements at the same time may lead to Seller/Landlord having to pay additional fees. Thus, Seller/Landlord confirms it is not party to any active, exclusive real estate listing agreement besides this one.

6. **REFERRAL FEE DISCLOSURE.** ☐ If this box is checked, Listing Broker is obligated to pay a referral fee to _____ for having referred Seller/Landlord to Listing Broker. The referral fee shall be either ____% of the Listing Broker Compensation or \$_____, and paid from the Listing Broker Compensation earned and received by Listing Broker. Seller/Landlord acknowledges Listing Broker's obligation to pay a referral fee, as provided above.

Notice: Listing Broker (eXp) does not share commissions with a Buyer's/Tenant's Broker. Compensation to Buyer's/Tenant's Broker is not required by law.

7. **BUYER/TENANT BROKER COMPENSATION.** Seller/Landlord may, at its discretion, offer compensation to a Buyer's/Tenant's Broker ("**Buyer/Tenant Broker Compensation**"). By completing any boxes below, Seller/Landlord is choosing to offer Buyer/Tenant Broker Compensation, and authorizes Listing Broker (eXp) to disclose the Buyer/Tenant Broker Compensation being offered by Seller/Landlord (as specified in this Section). Buyer/Tenant Broker Compensation is (*check all that apply*):

<u>For Sale:</u> ☐ Exactly \$ _____; or ☐ <u>3</u> % of the gross purchase price of the Property, as reflected on the final settlement statement; or ☐ Other: _____	<u>For Lease:</u> ☐ Exactly \$ _____; or ☐ ____% of the gross rental amount over the initial term, as reflected in the signed lease agreement; or ☐ Other: _____
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Buyer/Tenant Broker Compensation Payment. Seller/Landlord acknowledges that Buyer/Tenant Broker Compensation, if any, shall be paid by Seller/Landlord (and not Listing Broker) according to the terms of a separate written agreement between Seller/Landlord and Buyer's/Tenant's Broker.

8. **SELLER/LANDLORD CONCESSIONS.** Buyer/Tenant may request a concession from Seller/Landlord ("**Seller/Landlord Concession**") in the form of a credit, to be given to Buyer/Tenant at close of escrow or as part of a lease agreement. This Seller/Landlord Concession may be used to reduce Buyer/Tenant loan or lease costs, title and escrow fees, Buyer's/Tenant's Broker fee, Property repair costs, or any other allowable Buyer/Tenant costs and fees. The final amount of the Seller/Landlord Concession must be determined in writing, whether in the purchase contract, lease agreement, or other applicable documentation. All Seller/Landlord Concessions are negotiable.

9. **AUTHORIZATION TO PROMOTE.** Seller/Landlord authorizes and instructs Listing Broker to advertise and promote the Property as follows (*check all that apply*):

- ☒ On eXp Access (<https://access.exprealty.com/>), Listing Broker's global listing network.
- ☒ On those listing services platforms serving that geographic area in which the Property is situated (provided that Listing Broker's undersigned agent is a subscribing member).
- ☒ Through placement of a "For Sale", "For Lease" or "Available" sign and customary sign riders on the Property.

- ☒ Through placement of photos/video and virtual tours of the Property on the internet and in other electronic and online media platforms. (Once images are uploaded to the internet, Listing Broker no longer has control over how they are used or the length of time they remain accessible to the public.)

Listing Broker ☒ **is** ☐ **is not** authorized to disclose the existence of offers (including sale or lease price, and/or terms and conditions of sale or lease) to third parties.

10. PROPERTY SHOWINGS AND ACCESS.

- (a) Seller/Landlord ☒ **authorizes** ☐ **does not authorize**, the installation of a lockbox/keysafe on the Property, which will contain a key for others to access the interior of the Property.
- (b) Seller/Landlord will safeguard valuables.
- (c) Seller/Landlord accepts responsibility for preparing the Property to minimize the likelihood of injury, damage, and/or loss of personal property.
- (d) Seller/Landlord shall provide access to the Property at reasonable times and upon reasonable notice to allow for showing the Property to prospective Buyers/Tenants and their brokers.

11. BROKER SERVICES. Listing Broker agrees to perform, advise, and take action as follows:

- (a) exercise reasonable care, skill, and due diligence to achieve the purpose of this Agreement;
- (b) provide comparative market analysis to recommend and assist Seller/Landlord in determining an appropriate Listing Price/Lease Rate and any changes to the Listing Price/Lease Rate;
- (c) create and execute a marketing plan to promote, advertise, and market the Property to prospective Buyers/Tenant's;
- (d) coordinate and facilitate showings and scheduled viewing events based on instructions provided by the Seller/Landlord;
- (e) represent Seller/Landlord in negotiations with potential Buyers/Tenants to obtain offers to purchase or lease the Property on terms acceptable to Seller/Landlord;
- (f) handle all necessary paperwork, coordinate inspections, and communications to ensure compliance with legal and contractual requirements; and
- (g) provide regular updates to Seller/Landlord regarding marketing efforts, interest or feedback from prospective Buyers/Tenants, market condition changes, and the sale or lease process.

12. ARTIFICIAL INTELLIGENCE. AI may be used as a tool to enhance real estate marketing services. Listing Broker may use AI in performing the services described in Section 11(c) (for example, to virtually stage listing photos, draft property descriptions, or support other marketing-related tasks). All AI-generated content will be reviewed by Listing Broker (or Listing Broker's undersigned agent) and provided to Seller/Landlord for review as directed. Once published on the internet, Listing Broker no longer has control over how this content is used.

13. SELLER/LANDLORD COMMITMENT. Seller/Landlord understands and commits to perform as follows:

- (a) Seller/Landlord possesses, and shall continue to possess, full legal authority to sell or lease the Property, and to execute documents concerning the Property sale or lease;
- (b) provide all documentation reasonably requested by Listing Broker to confirm Seller's/Landlord's ability to perform under this Agreement;
- (c) provide timely disclosure of Property conditions, including immediate disclosure to Listing Broker of any known hidden defects concerning the Property and its surroundings;
- (d) cooperate with Listing Broker in the sale or lease process, and act in good faith to accomplish the sale or lease of the Property;
- (e) maintain the Property's condition;
- (f) inform Listing Broker of any past due mortgage loan payments, tax payments, insurance payments, association dues, and utility payments;
- (g) inform Listing Broker prior to leasing, mortgaging, or encumbering the Property;
- (h) in a way that demonstrates that Listing Broker is not responsible for custody or condition of the Property or for its management; and

(i) Seller/Landlord, in its discretion, shall consult with its own advisors for specific legal, financial, tax and other professional advice.

14. FIXTURES; INCLUDED/EXCLUDED ITEMS. Unless specifically excluded, all fixtures and built-in furniture will be included in the sale or lease. All fixtures and built-in furniture rented by Seller/Landlord must be listed as an excluded item. Please specify all items that will be excluded from the sale or lease, if any:

Excluded items: _____

15. RECORDINGS AT THE PROPERTY. If Seller/Landlord has an audio/video recording system at the Property, Seller/Landlord understands that recording and transmitting of audio or video may result in a violation of state and/or federal laws. Seller/Landlord is advised to post a conspicuous notice on the Property regarding the existence of such devices in the Property. Seller/Landlord acknowledges that prospective Buyers/Tenants may photograph or video the interior of the Property. Therefore, Seller/Landlord should remove any items of a personal nature that Seller/Landlord does not want photographed, recorded, or transmitted, including photos, paperwork, and other personally identifiable information.

16. CANCELLATION. This Agreement may be canceled prior to the end of the Term, upon mutual written agreement between Seller/Landlord and Listing Broker.

17. BINDING EFFECT. Seller's/Landlord's obligation to pay Listing Broker Compensation (according to the terms of Section 5), and if applicable, Buyer/Tenant Broker Compensation (according to the terms of Section 7), is binding upon Seller/Landlord, its estate, and its heirs, beneficiaries, legatees, successors and permitted assigns.

18. GOVERNING LAW. This Agreement shall be governed by and construed in accordance with the laws of the state in which the Property is located. If a provision of this Agreement is found to be invalid, the remaining provisions shall not be affected and remain in effect.

19. EQUAL HOUSING OPPORTUNITY. The Property is offered in compliance with federal, state, and local fair housing laws.

20. FIRPTA. The Foreign Investment in Real Property Tax Act ("**FIRPTA**") is applicable if Seller/Landlord is a non-resident alien individual, foreign corporation, foreign partnership, foreign trust, or foreign estate. If applicable, Seller/Landlord agrees to comply with all state and federal regulations regarding the FIRPTA. Seller/Landlord is responsible for obtaining independent legal and tax advice.

21. POTENTIALLY COMPETING SELLERS/LANDLORDS AND BUYERS/TENANTS. Listing Broker may represent or take listings on similar property types to the Property. Listing Broker may also represent Buyers/Tenants looking for a property similar to Seller's/Landlord's Property. The client will always make the determination of which property is best for them to purchase.

22. ELECTRONIC SIGNATURES. This Agreement may be signed by electronic means, and any electronic signing on this Agreement shall have the same force and effect as if signed by original signature. This Agreement may be executed in two or more counterparts, each of which shall be deemed an original, but all of which shall constitute one and the same instrument.

23. ASSIGNMENT. Neither Seller/Landlord nor Listing Broker may assign any rights or obligations under this Agreement without the prior written consent of the other, and any attempted assignment without consent shall be void and of no effect.

24. CYBER PROTECTION. As a seller involved in a real estate transaction where money is changing hands, Seller/Landlord may be a potential target for cyber-criminals. Seller/Landlord is advised to always contact the closing attorney or escrow company directly before wiring any money.

25. ADDITIONAL TERMS AND CONDITIONS. (Reserved for additional terms as agreed upon)

26. ENTIRE AGREEMENT. This Agreement contains the entire understanding between parties, and replaces any prior written or oral agreements between them. This Agreement may only be modified in a writing signed by Seller/Landlord and Listing Broker.

BY SIGNING BELOW, Seller/Landlord and Listing Broker agree to the terms set forth in this Agreement.

Seller/Landlord 1: _____
(Signature) (Typed/Print Name) (Date)

(Title) (E-mail/Phone)

Seller/Landlord 2: _____
(Signature) (Typed/Print Name) (Date)

(Title) (E-mail/Phone)

Seller/Landlord 3: _____
(Signature) (Typed/Print Name) (Date)

(Title) (E-mail/Phone)

Seller/Landlord 4: _____
(Signature) (Typed/Print Name) (Date)

(Title) (E-mail/Phone)

Listing Broker: Exp Realty Kyle Friedman
(Firm Name) (Listing Broker/Agent's Signature) (Typed/Printed Name) (Date)

(443) 789-3101 kyle@friedmanreteam.com 673223
(Telephone) (E-mail) (Listing Broker License No.) (Agent's License No.)

(Colorado Only) This form has not been approved by the Colorado Real Estate Commission. This form has been prepared for eXp Realty® by Colorado-licensed attorney, James Howard Bramble.

(Wisconsin Only) This form has been drafted by Listing Broker.

(Missouri-Kansas Only) This form is not for use in Missouri or Kansas.

(Nebraska Only) This form is not for use in Nebraska.

Broker/Agent

Date

Client

☐

Seller Client

☐

Landlord Client

What is Bright MLS?

Bright runs the largest, most accurate, up-to-date database of properties for sale and rent in the area, creating an open, transparent market for information about available homes. Most websites and apps get their information from Bright's multiple listing service (MLS). For more information, go to BrightMLS.com/Open.

How does Bright MLS work?

Impartial Cooperation Among Agents and Brokers: Bright supports an open, transparent market for property information by requiring subscribers (licensed agents and brokers) to cooperatively share information about all available properties and make them available to subscribers in the area on an impartial basis.

Open, Transparent Access to Information: You and your broker decide on the information, pictures, and price submitted to Bright for your home. Bright checks it for accuracy, enhances it with historical records, and shares it (for free) with 100,000+ brokers/agents and thousands of sites and apps. Bright charges you nothing; subscribers pay a flat subscription fee.

What do I need to know about broker fees? What your broker may earn, and what you may pay, must be agreed in a contract by the time you (seller/landlord) sign a listing agreement, or you (buyer/tenant) are taken on a home tour. **Those amounts are not set by law, trade association, or Bright; they are fully negotiable.**

Subscribers must work impartially with their clients and other subscribers, in their client's best interest, regardless of any financial arrangement with another broker, which may not be communicated using Bright's system and must be disclosed in writing to their client.

A buyer/tenant may ask in a purchase offer for a seller/landlord to cover closing costs, including broker fees. If you are a seller/landlord, you may choose to agree to cover a buyer's closing costs or service provider fees (e.g., title, broker or lawyer fees) or provide other concessions.

Seller/Landlord client initials to acknowledge understanding of the above

As the seller/landlord, how will my broker use Bright MLS to market my home?

- When will your broker allow potential buyers/renters to learn about the property?

Date

Property address

Subscribers must submit information to Bright about every property with an exclusive listing within two days of allowing any potential buyers or renters to learn about the property.

- How will your broker use Bright? (Check one applicable option)

☐

2-A Active: Use Bright to share my home's information with the open market (Internet: Yes)

Bright will share the property's information with other subscribers and popular websites/apps. You and your broker still manage access to the home (use option 2-C if tours/showings/open houses are not yet available when information must be submitted to Bright).

☐

2-B Active: Use Bright to share my home's information with real estate professionals in Bright's MLS only, and do not publicly market my home on the Internet (Internet: No)

Your broker may select not to have your property's information shared with websites/apps. You and your broker still manage access to the home (use option 2-C if tours/showings/open houses are not yet available when information must be submitted to Bright).

☐

2-C: My home is ready for marketing, but will be ready for showings beginning on:

The property will be "Coming Soon" in Bright until ready for home tours/showings/open houses, and then "Active" once any of those begin. **If option 2-C is selected, select:**

☐

Internet: Yes (Use Bright to share my home's information with the open market)

☐

Internet: No (Use Bright to share my home's information with real estate professionals in Bright's MLS only)

☐

2-D: I do not want my home on the open market: Restrict marketing only to my broker's network

Studies show that homes publicly marketed through Bright's MLS typically sell for significantly more than homes marked as "off MLS," "off market," "private" or "exclusive." And most homes that start with restricted marketing find a buyer only once marketed through the MLS to the open market. If you want to instruct your broker to restrict marketing, then you must sign Bright's separate **Limited Marketing/Office Exclusive form** and follow its policies.



STATE OF MARYLAND
REAL ESTATE COMMISSION

Consent for Dual Agency

(In this form, the word "seller" includes "landlord"; "buyer" includes "tenant"; and "purchase" or "sale" includes "lease")

When Dual Agency May Occur

The possibility of Dual Agency arises when:

- 1) The buyer is interested in a property listed by a real estate broker; and
- 2) The seller's agent and the buyer's agent are affiliated with the same real estate broker.

Important Considerations Before Making a Decision About Dual Agency

A broker or the broker's designee, acting as a dual agent does not exclusively represent either the seller or buyer; there may be a conflict of interest because the interests of the seller and buyer may be different or adverse. As a dual agent, the real estate broker does not owe undivided loyalty to either the seller or buyer.

Before the buyer and seller can proceed to be represented by a broker acting as a dual agent, they must both sign Consent for Dual Agency. If the buyer has previously signed this Consent for Dual Agency, the buyer must **affirm** the buyer's consent for the purchase of a particular property before an offer to purchase is presented to the seller. If the seller has previously signed Consent for Dual Agency, the seller must **affirm** the seller's consent for the sale of the property to a particular buyer before accepting an offer to purchase the property. The **affirmation** is contained on Page 2 of this form.

Your Choices Concerning Dual Agency

In a possible dual agency situation, the buyer and seller have the following options:

1. **Consent in writing to dual agency.** If all parties consent in writing, the real estate broker or the broker's designee (the "dual agent") shall assign one real estate agent affiliated with the broker to represent the seller (the seller's "intra-company agent") and another agent affiliated with the broker to represent the buyer (the buyer's "intra-company agent"). Intra-company agents are required to provide the same services to their clients that agents provide in transactions not involving dual agency, including advising their clients as to price and negotiation strategy.
2. **Refuse to consent to dual agency.** If either party refuses to consent in writing to dual agency, the real estate broker must terminate the brokerage relationship for that particular property with the buyer, the seller, or both. If the seller terminates the brokerage agreement, the seller must then either represent him or herself or arrange to be represented by another real estate company. If the buyer terminates the brokerage agreement the buyer may choose not to be represented but simply receive assistance from the seller's agent, from another agent in that company, or from a subagent from another company. Alternatively, the buyer may choose to enter into a written brokerage agreement with a different company.

Duties of a Dual Agent and Intra-Company Agent

Like other agents, unless the client gives consent to disclose the information, dual agents and intra-company agents must keep confidential information about a client's bargaining position or motivations. For example, without written consent of the client, a dual agent or intra-company agent may not disclose to the other party, or the other party's agent:

- 1) Anything the client asks to be kept confidential; *
- 2) That the seller would accept a lower price or other terms;
- 3) That the buyer would accept a higher price or other terms;
- 4) The reasons why a party wants to sell or buy, or that a party needs to sell or buy quickly; or
- 5) Anything that relates to the negotiating strategy of a party.

*** Dual agents and intra-company agents must disclose material facts about a property to all parties.**

How Dual Agents Are Paid

Only the broker receives compensation on the sale of a property listed by that broker.

If a financial bonus is offered to an agent who sells property that is listed with his/her broker, this fact must be disclosed in writing to both the buyer and seller.

Consent for Dual Agency

I have read the above information, and I understand the terms of the dual agency. I understand that I do not have to consent to a dual agency and that if I **refuse** to consent, there will not be a dual agency; and that I may withdraw the consent at any time upon notice to the dual agent. I hereby **consent** to have

Exp Realty (Firm Name) act as a Dual Agent for me as the

Seller in the sale of the property at:

/ /

Buyer in the purchase of a property listed for sale with the above-referenced broker.

Signature Date Signature Date

AFFIRMATION OF PRIOR CONSENT TO DUAL AGENCY

- The undersigned **Buyer(s)** hereby affirm(s) consent to dual agency for the following property:

/ /
Property Address

Signature Date Signature Date

- The undersigned **Seller(s)** hereby affirm(s) consent to dual agency for the Buyer(s) identified below:

Name(s) of Buyer(s)

Signature Date Signature Date



WIRING FRAUD ADVISORY NOTICE

Cybercrime is a potential threat in real estate and business brokerage transactions. Instances have occurred where criminals hack into the email accounts of real estate and business brokerage transaction service providers (such as, for example, law firms, escrow companies, and financial institutions), and from these email accounts, criminals proceed to send emails containing fraudulent wiring instructions to innocent parties. These fraudulent wiring instructions direct innocent parties to deliver funds to the criminals' bank accounts (often to off-shore accounts), rather than to the legitimate bank accounts belonging to the respective service provider. Once innocent parties release their funds to the criminals' bank accounts, there is little chance that such funds will ever be recovered.

Some criminals have even established fraudulent telephone numbers, intended to be called by innocent parties if they attempt to seek verbal confirmation that the fraudulent wiring instructions are accurate. In such cases, innocent parties call the telephone number (mistakenly believing that they are calling the respective service provider), the call is then answered by the criminals, and then the criminals provide confirmation that the fraudulent wiring instructions are in fact accurate. The innocent parties, wrongly believing that they just spoke to, and received confirmation from, the respective service provider, then authorize a transfer of their funds into the criminals' bank accounts under the false impression that they are transferring their funds to the respective service provider. Don't let this be you!

EXP REALTY WILL NEVER SEND WIRING INSTRUCTIONS TO YOU REGARDING YOUR TRANSACTION

Be advised of the following:

1. You should obtain the telephone numbers of your service providers at the time that you first engage them.
2. You should never wire funds to your service providers without first calling them (at the telephone number that you originally obtained from them), and having them confirm that the wiring instructions you received from them are accurate (including the account number, routing number, and any other codes).
3. You should avoid sending personally identifiable information (such as social security numbers, social insurance numbers, dates of birth, etc...) in emails or text messages. It is best to provide such information in person or over the telephone directly to your intended service provider.
4. You should take steps to secure any electronic systems you are using. For example, ensure that your email account and WiFi service each contain strong passwords, and that you are opting-in to use two-step verification processes, where available.
5. If an email, telephone call, or other communication seems suspicious, follow your instincts and do not authorize the release of any funds without first independently confirming that the communication is legitimate. Additional information concerning how to protect yourself from and against wiring fraud may be obtained from the following sources, among others:
 - U.S. Department of Justice (Criminal Division): <https://www.justice.gov/criminal/criminal-fraud/report-fraud>
 - Federal Bureau of Investigation: <https://www.fbi.gov/investigate/white-collar-crime> & <https://www.fbi.gov/investigate/cyber>
 - The National White-Collar Crime Center: <https://www.nw3c.org/UI/Index.html>
 - On Guard Online: www.onguardonline.gov

Received, reviewed, and understood by each of the undersigned:

_____	_____	_____	_____
	Date		Date
_____	_____	_____	_____
	Date		Date

(Colorado Only) This form has not been approved by the Colorado Real Estate Commission. This form has been prepared for eXp Realty® by Colorado-licensed attorney, James Howard Bramble.



AFFILIATED BUSINESS ARRANGEMENT DISCLOSURE STATEMENT

For use with eXp Realty® in the United States (excluding CA, VA and FL)

TO: Consumer(s)
FROM: eXp Realty
PROPERTY: , ,
DATE:

This is to give you notice that eXp World Holdings, Inc., the parent corporation of each of those subsidiaries comprising the eXp Realty® brand of real estate brokerage companies¹ (hereinafter collectively referred to as “**eXp Realty**”), has a business relationship with the following companies listed below:

- SUCCESS Lending, LLC (“**SUCCESS Lending**”) for mortgage loan financing: eXp Realty has an indirect ownership interest in SUCCESS Lending and a business relationship with Kind Partners, LLC, a wholly owned subsidiary of Kind Lending, LLC (hereinafter collectively referred to as “**Kind**”). eXp World Holdings, Inc.’s wholly owned subsidiary, Opportunity Garden, Inc., owns 50% of SUCCESS Lending. Kind also owns 50% of SUCCESS Lending. Because of this relationship, a referral to SUCCESS Lending may provide eXp Realty and Kind, and its and its owners, affiliates, and employees, with a financial or other benefit.
- eXp Realty has a business relationship with, but no ownership interest in, America’s Preferred Home Warranty, Inc. (home warranty services), SkySlope, Inc. (real estate transaction coordination services), Curbio (real estate renovation services), Roam Transaction Coordination Services (real estate transaction coordination services), Sellers Shield (real estate legal protection plan), and Utility Connect (home services concierge). Because of these relationships, eXp Realty, and its owners, affiliates, and employees may receive financial or other benefits.

Set forth below is the estimated charge or range of charges for the settlement services listed. You are NOT required to use the listed providers as a condition for the settlement of your loan, or purchase, sale, financing or refinance of the subject property. **THERE ARE FREQUENTLY OTHER SETTLEMENT SERVICE PROVIDERS AVAILABLE WITH SIMILAR SERVICES. YOU ARE FREE TO SHOP AROUND TO DETERMINE THAT YOU ARE RECEIVING THE BEST SERVICES AND THE BEST RATE FOR THESE SERVICES.**

COMPANY	ESTIMATED CHARGE OR RANGE OF CHARGES
SUCCESS LENDING, LLC This company provides various real estate mortgage loan origination activities either as a third-party originator or a mortgage broker, including loan pre-qualification, loan origination, loan pre-approval, loan structuring, processing and closing.	<u>Fees Charged by SUCCESS Lending, LLC (Affiliate)</u> Loan Discount Fee / Points ¹ : 0.00% – 4.00% of the loan amount Origination Fees (which may be identified as Administrative, Processing, Underwriting, Commitment, or similar origination-related fees depending on state requirements): \$1,595 – \$1,649

¹ eXp Realty, LLC (in all states except those that follow); eXp Realty of California, Inc. (in California); eXp Realty of Northern California, Inc. (in northern California); eXp Realty of Greater Los Angeles, Inc. (in central California); eXp Realty of Southern California, Inc. (in southern California); eXp Realty North, LLC (in N. Dakota, Minnesota, and portions of New York, except as further qualified); eXp Realty of Connecticut, LLC (in Connecticut, and Brooklyn, New York); eXp Realty Associates, LLC (in Brooklyn, mid-town, and downtown, New York City), and eXp Realty of Charlotte Metro NC, LLC, eXp Realty of Northwest NC, LLC, eXp Realty of Northeast NC, LLC, eXp Realty of Piedmont NC, LLC, eXp Realty of Southeast NC, LLC, and eXp Realty of Triangle NC, LLC (in North Carolina).



COMPANY	ESTIMATED CHARGE OR RANGE OF CHARGES
The estimated charges for the settlement services provided by SUCCESS Lending are detailed in the Loan Estimate provided to you by your loan officer.	¹Loan discount points are optional charges paid at closing to reduce the interest rate on your loan. One point equals one percent (1%) of the loan amount. The number of points charged, if any, will depend on the loan program selected and market conditions at the time of rate lock. <u>Third-Party Fees (Not Retained by SUCCESS Lending)</u> You may also be charged certain third-party fees in connection with your mortgage loan transaction, which are not retained by SUCCESS Lending and may vary by transaction, property type, loan program, or state, including but not limited to: Appraisal Fee: \$625 – \$1,300 Credit Report Fee: \$121 per borrower (unless otherwise permitted under applicable program guidelines) Credit Report Re-pull Fee: \$121 Flood Certification Fee: approximately \$7 Tax Service Fee: approximately \$86 Verification of Employment Fee: approximately \$210 Additional third-party fees may apply as disclosed in your Loan Estimate or other applicable mortgage loan cost disclosure. Actual charges may vary based on the specific loan program selected, borrower qualifications, property location, state regulatory requirements, and other transaction-specific considerations. Please refer to your Loan Estimate or equivalent disclosure for the fees applicable to your specific transaction.

ACKNOWLEDGMENT OF RECEIPT OF DISCLOSURE

I/we have read this disclosure form, and understand that eXp Realty is referring me/us to purchase the above-described settlement service(s) and may receive a financial or other benefit as the result of this referral.

Consumer 1:

Signature

Print Name

Date

Consumer 2:

Signature

Print Name

Date

(For Colorado Residents Only): This form has not been approved by the Colorado Real Estate Commission.

MARYLAND RESIDENTIAL PROPERTY DISCLOSURE AND DISCLAIMER STATEMENT

Property Address: _____

Legal Description: _____

NOTICE TO SELLER AND PURCHASER

Section 10-702 of the Real Property Article, *Annotated Code of Maryland*, requires the seller of certain residential real property to furnish to the purchaser either (a) a RESIDENTIAL PROPERTY DISCLAIMER STATEMENT stating that the seller is selling the property "as is" and makes no representations or warranties as to the condition of the property or any improvements on the real property, except as otherwise provided in the contract of sale, or in a listing of latent defects; or (b) a RESIDENTIAL PROPERTY DISCLOSURE STATEMENT disclosing defects or other information about the condition of the real property actually known by the seller. Certain transfers of residential property are excluded from this requirement (see the exemptions listed below).

10-702. EXEMPTIONS. The following are specifically excluded from the provisions of §10-702:

1. The initial sale of single family residential real property:
 - A. that has never been occupied; or
 - B. for which a certificate of occupancy has been issued within 1 year before the seller and buyer enter into a contract of sale;
2. A transfer that is exempt from the transfer tax under §13-207 of the Tax-Property Article, except land installment contracts of sales under §13-207(a) (11) of the Tax-Property Article and options to purchase real property under §13-207(a)(12) of the Tax-Property Article;
3. A sale by a lender or an affiliate or subsidiary of a lender that acquired the real property by foreclosure or deed in lieu of foreclosure;
4. A sheriff's sale, tax sale, or sale by foreclosure, partition, or by court appointed trustee;
5. A transfer by a fiduciary in the course of the administration of a decedent's estate, guardianship, conservatorship, or trust;
6. A transfer of single family residential real property to be converted by the buyer into use other than residential use or to be demolished; or
7. A sale of unimproved real property.

Section 10-702 also requires the seller to disclose information about latent defects in the property that the seller has actual knowledge of. The seller must provide this information even if selling the property "as is." "Latent defects" are defined as: Material defects in real property or an improvement to real property that:

- (1) A purchaser would not reasonably be expected to ascertain or observe by a careful visual inspection of the real property; and
- (2) Would pose a direct threat to the health or safety of:
 - (i) the purchaser; or
 - (ii) an occupant of the real property, including a tenant or invitee of the purchaser.

MARYLAND RESIDENTIAL PROPERTY DISCLOSURE STATEMENT

NOTICE TO SELLERS: Complete and sign this statement only if you elect to disclose defects, including latent defects, or other information about the condition of the property actually known by you; otherwise, sign the Residential Property Disclaimer Statement. You may wish to obtain professional advice or inspections of the property; however, you are not required to undertake or provide any independent investigation or inspection of the property in order to make the disclosure set forth below. The disclosure is based on your personal knowledge of the condition of the property at the time of the signing of this statement.

NOTICE TO PURCHASERS: The information provided is the representation of the Sellers and is based upon the actual knowledge of Sellers as of the date noted. Disclosure by the Sellers is not a substitute for an inspection by an independent home inspection company, and you may wish to obtain such an inspection. The information contained in this statement is not a warranty by the Sellers as to the condition of the property of which the Sellers have no knowledge or other conditions of which the Sellers have no actual knowledge.

How long have you owned the property? _____

Property System: Water, Sewage, Heating & Air Conditioning (Answer all that apply)

Water Supply ☐ Public ☐ Well ☐ Other _____
Sewage Disposal ☐ Public ☐ Septic System approved for _____ (# bedrooms) **Other Type** _____

Garbage Disposal ☐ Yes ☐ No

Dishwasher ☐ Yes ☐ No

Heating ☐ Oil ☐ Natural Gas ☐ Electric ☐ Heat Pump Age _____ ☐ Other _____

Air Conditioning ☐ Oil ☐ Natural Gas ☐ Electric ☐ Heat Pump Age _____ ☐ Other _____

Hot Water ☐ Oil ☐ Natural Gas ☐ Electric Capacity _____ Age _____ ☐ Other _____

Please indicate your actual knowledge with respect to the following:

1. Foundation: Any settlement or other problems?	☐ Yes	☐ No	☐ Unknown
Comments:_____			
2. Basement: Any leaks or evidence of moisture?	☐ Yes	☐ No	☐ Unknown ☐ Does Not Apply
Comments:_____			
3. Roof: Any leaks or evidence of moisture?	☐ Yes	☐ No	☐ Unknown
Type of Roof:_____Age_____			
Comments:_____			
Is there any existing fire retardant treated plywood?	☐ Yes	☐ No	☐ Unknown
Comments:_____			
4. Other Structural Systems, including exterior walls and floors:			
Comments:_____			
Any defects (structural or otherwise)?	☐ Yes	☐ No	☐ Unknown
Comments:_____			
5. Plumbing system: Is the system in operating condition?	☐ Yes	☐ No	☐ Unknown
Comments:_____			
6. Heating Systems: Is heat supplied to all finished rooms?	☐ Yes	☐ No	☐ Unknown
Comments:_____			
Is the system in operating condition?	☐ Yes	☐ No	☐ Unknown
Comments:_____			
7. Air Conditioning System: Is cooling supplied to all finished rooms?	☐ Yes	☐ No	☐ Unknown ☐ Does Not Apply
Comments:_____			
Is the system in operating condition?	☐ Yes	☐ No	☐ Unknown ☐ Does Not Apply
Comments:_____			
8. Electric Systems: Are there any problems with electrical fuses, circuit breakers, outlets or wiring?			
☐ Yes	☐ No.	☐ Unknown	
Comments:_____			
8A. Will the smoke alarms provide an alarm in the event of a power outage? ☐ Yes ☐ No			
Are the smoke alarms over 10 years old? ☐ Yes ☐ No			
If the smoke alarms are battery operated, are they sealed, tamper resistant units incorporating a silence/hush button, which use long-life batteries as required in all Maryland Homes by 2018? ☐ Yes ☐ No			
Comments:_____			
9. Septic Systems: Is the septic system functioning properly?	☐ Yes	☐ No	☐ Unknown ☐ Does Not Apply
When was the system last pumped? Date_____ ☐ Unknown			
Comments:_____			
10. Water Supply: Any problem with water supply?	☐ Yes	☐ No	☐ Unknown
Comments:_____			
Home water treatment system:	☐ Yes	☐ No	☐ Unknown
Comments:_____			
Fire sprinkler system:	☐ Yes	☐ No	☐ Unknown ☐ Does Not Apply
Comments:_____			
Are the systems in operating condition?	☐ Yes	☐ No	☐ Unknown
Comments:_____			
11. Insulation:			
In exterior walls?	☐ Yes	☐ No	☐ Unknown
In ceiling/attic?	☐ Yes	☐ No	☐ Unknown
In any other areas?	☐ Yes	☐ No	Where? _____
Comments:_____			
12. Exterior Drainage: Does water stand on the property for more than 24 hours after a heavy rain?			
☐ Yes	☐ No	☐ Unknown	
Comments:_____			
Are gutters and downspouts in good repair?	☐ Yes	☐ No	☐ Unknown
Comments:_____			

13. Wood-destroying insects: Any infestation and/or prior damage? ☐ Yes ☐ No ☐ Unknown

Comments: _____

Any treatments or repairs? ☐ Yes ☐ No ☐ Unknown

Any warranties? ☐ Yes ☐ No ☐ Unknown

Comments: _____

14. Are there any hazardous or regulated materials (including, but not limited to, licensed landfills, asbestos, radon gas, lead-based paint, underground storage tanks, or other contamination) on the property?

☐ Yes ☐ No ☐ Unknown

If yes, specify below

Comments: _____

15. If the property relies on the combustion of a fossil fuel for heat, ventilation, hot water, or clothes dryer operation, is a carbon monoxide alarm installed in the property?

☐ Yes ☐ No ☐ Unknown

Comments: _____

16. Are there any zoning violations, nonconforming uses, violation of building restrictions or setback requirements or any recorded or unrecorded easement, except for utilities, on or affecting the property?

☐ Yes ☐ No ☐ Unknown

If yes, specify below

Comments: _____

16A. If you or a contractor have made improvements to the property, were the required permits pulled from the county or local permitting office? ☐ Yes ☐ No ☐ Does Not Apply ☐ Unknown

Comments: _____

17. Is the property located in a flood zone, conservation area, wetland area, Chesapeake Bay critical area or Designated Historic District?

☐ Yes ☐ No ☐ Unknown If yes, specify below

Comments: _____

18. Is the property subject to any restriction imposed by a Home Owners Association or any other type of community association?

☐ Yes ☐ No ☐ Unknown If yes, specify below

Comments: _____

19. Are there any other material defects, including latent defects, affecting the physical condition of the property?

☐ Yes ☐ No ☐ Unknown

Comments: _____

NOTE: Seller(s) may wish to disclose the condition of other buildings on the property on a separate RESIDENTIAL PROPERTY DISCLOSURE STATEMENT.

The seller(s) acknowledge having carefully examined this statement, including any comments, and verify that it is complete and accurate as of the date signed. The seller(s) further acknowledge that they have been informed of their rights and obligations under §10-702 of the Maryland Real Property Article.

Seller(s) _____ Date _____

Seller(s) _____ Date _____

The purchaser(s) acknowledge receipt of a copy of this disclosure statement and further acknowledge that they have been informed of their rights and obligations under §10-702 of the Maryland Real Property Article.

Purchaser _____ Date _____

Purchaser _____ Date _____

MARYLAND RESIDENTIAL PROPERTY DISCLAIMER STATEMENT

NOTICE TO SELLER(S): Sign this statement only if you elect to sell the property without representations and warranties as to its condition, except as otherwise provided in the contract of sale and in the listing of latent defects set forth below; otherwise, complete and sign the RESIDENTIAL PROPERTY DISCLOSURE STATEMENT.

Except for the latent defects listed below, the undersigned seller(s) of the real property make no representations or warranties as to the condition of the real property or any improvements thereon, and the purchaser will be receiving the real property "as is" with all defects, including latent defects, which may exist, except as otherwise provided in the real estate contract of sale. The seller(s) acknowledge having carefully examined this statement and further acknowledge that they have been informed of their rights and obligations under §10-702 of the Maryland Real Property Article.

Section 10-702 also requires the seller to disclose information about latent defects in the property that the seller has actual knowledge of. The seller must provide this information even if selling the property "as is." "Latent defects" are defined as: Material defects in real property or an improvement to real property that:

- (1) A purchaser would not reasonably be expected to ascertain or observe by a careful visual inspection of the real property; and
- (2) Would pose a direct threat to the health or safety of:
 - (i) the purchaser; or
 - (ii) an occupant of the real property, including a tenant or invitee of the purchaser.

Does the seller(s) have actual knowledge of any latent defects? ☐ Yes ☐ No If yes, specify:

Seller _____

Date_____

Seller_____

Date_____

The purchaser(s) acknowledge receipt of a copy of this disclaimer statement and further acknowledge that they have been informed of their rights and obligations under §10-702 of the Maryland Real Property Article.

Purchaser _____

Date_____

Purchaser _____

Date_____